(See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that Neary does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks $45,000 as fees. Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to provide a lodestar figure for any hearing on final approval.

Similarly, the requested representative payment of $2,000 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

Hearing required in order to schedule filing of a proper declaration. Counsel need to provide a declaration with respect to any relationship with the cy pres recipient in compliance with Code of Civil Procedure section 382.4. Subject to provision of such information the Court would find that the proposed settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

If preliminary approval is granted, counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

8. 9:00 AM CASE NUMBER: C24-03434
CASE NAME: DANIEL OLEJNIK-ROLIZ VS. MARCO ANTONIO MEZA ORTEGA
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY:
TENTATIVE RULING
Off calendar. Moving party was dismissed 12/18/25.

9. 9:00 AM CASE NUMBER: C25-00744
CASE NAME: SHELBY SIFERS VS. NBCUNIVERSAL MEDIA, LLC
HEARING ON DEMURRER TO: COMPLAINT

FILED BY: NBCUNIVERSAL MEDIA, LLC
TENTATIVE RULING:
Introduction
Before the Court is Defendant NBC Universal Media, LLC's ("NBC") Demurrer. The Demurrer relates to Plaintiffs Complaint for privacy related cause of actions.

For the following reasons, **the Demurrer is sustained as to the claims regarding NBC Sports, Telemundo, and Meta Pixel, with leave to amend and overruled as to the remaining claims. The amended pleading shall be filed within 30 days of receipt of notice of this order.**

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their Demurrer in detailing their meet and confer efforts with Plaintiff's counsel in the Declaration of Sheri Pan. On August 08, 2025, Defendant's counsel met and conferred via teleconference and could not come to a resolution about the Demurrer. (Pan Decl. at ¶ 2.)

Request for Judicial Notice

Defendant NBC requests the Court to take judicial notice of three exhibits. Exhibits A and B are Los Angeles County Superior Court rulings on Demurrers. A court may take judicial notice of records of any court. (See Evid. Code § 452(d) (providing "[r]ecords of . . . any court of this state" are among the matters that may be judicially noticed).)

Exhibit C is the Contra Costa County Superior Court's Website Privacy Policy. The Contra Costa Superior Court website is public, and the privacy policy contained therein is not reasonably subject to dispute and is capable of immediate and accurate determination. (See Evid. Code § 452 (c), (d), (h); People v. Buchanan (2022) 85 Cal.App.5th 186, 194 n.5 (agreeing to judicially notice language from the California courts' website under Evidence Code § 352(c) and (h)).) §§

Since all Exhibits are supported by proper authority, judicial notice is granted for Exhibits A-C.

Statement of Facts

Defendant operates several media websites including NBC News, NBC Sports, Telemundo, and Rotten Tomatoes (the "Websites"). (Complaint ¶ 2.) When users visit these Websites, Defendant automatically installs tracking technologies—specifically the Adnxs Tracker, Magnite Rubicon Tracker, and Meta Pixel—on users' browsers without their knowledge or consent. (Complaint ¶¶ 2, 36-37.)

These trackers function as "pen registers" under California law by capturing and transmitting users' IP addresses and other routing, addressing, and signaling information to third parties including Xandr (Microsoft), Magnite, and Meta. (Complaint ¶¶ 3, 37.) IP addresses are unique numerical identifiers that reveal geographic location data and constitute personally identifiable information. (Complaint ¶¶ 21-22.) The trackers also install persistent cookies that create unique identifiers for each browser, enabling comprehensive tracking of users' activities across multiple sessions and locations. (Complaint ¶¶ 42-45, 50-53, 58-61.)

Defendant uses these tracking technologies to monetize its websites through targeted advertising and analytics, generating substantial revenue from the unauthorized collection of users' private data. (Complaint ¶¶ 4, 46, 53, 62.) The tracking occurs automatically and invisibly in less than a second, before users can access any privacy disclosures located at the bottom of webpages. (Complaint ¶¶ 44, 52, 60, 64.) Users are never presented with pop-up windows, banners, or other notifications requesting consent for this data collection. (Complaint ¶ 63.) Plaintiffs regularly accessed Defendant's websites from California using their personal devices and had their IP addresses and other personally identifying device information collected without authorization. (Complaint ¶¶ 68-73.) Defendant obtained no court order authorizing this surveillance. (Complaint ¶ 65.)

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc*. (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id*. at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Uncertainty is a well-established ground of demurrer. (*Martin v. Bank of San Jose* (Cal. App. 1929) 98 Cal. App. 390.) The objection of uncertainty does not go to failure to allege sufficient facts but to doubt as to what the pleader means by the facts alleged. (*Brea v. McGlashan* (1934) 3 Cal. App. 2d 454.) A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made. (*Butler v. Sequeira* (1950) 100 Cal. App. 2d 143.) A Complaint is ambiguous and uncertain where it cannot be ascertained therefrom whether acts complained of were committed by defendants in their individual capacity, or in one of other capacities in which they are alleged to have acted. (*Lapique v. Ruef* (1916) 30 Cal. App. 391.)

Analysis

Standing for Claims Regarding NBC Sports, Telemundo, and Meta Pixel

As to the claims Regarding NBC Sports, Telemundo, and Meta Pixel, Plaintiffs lack standing because they do not allege they visited those Websites, which are also the only ones that allegedly used the Meta Pixel. "It is elementary that the named plaintiff in a class action must be a member of the class he purports to represent." (*Trotsky v. Los Angeles Fed. Sav. & Loan Assn*. (1975) 48 Cal.App.3d 134, 146.) Because Plaintiffs are not members of the putative class with respect to those allegations, they should be dismissed. Defendant's Demurrer as to these claims are sustained with leave to amend.

CDAFA Penal Code § 502

Plaintiffs bring their CDAFA claim under Cal. Penal Code Section 502 based on NBC's unauthorized installation of third-party tracker cookies on Plaintiffs' web browsers unbeknownst to Plaintiffs, alleging that NBC knowingly and without permission: 1) altered and used Plaintiffs' data and computer systems (Penal Code § 502(c)(1)); 2) took and made use of the data, including IP addresses, from Plaintiffs' computers, by disclosing that data to third parties (Penal Code § 502(c)(2)); 3) added and altered data and computer software on Plaintiffs' computers (Penal Code § 502(c)(4)); and 4) caused those trackers to access Plaintiffs' computers (Penal Code § 502(c)(6) and (7)). (Complaint ¶¶ 81-101.)

Defendant NBC calls the CDAFA an "anti-hacking statute" and urges dismissal because its installation of trackers on Plaintiffs' computers were not computer hacks. (Demurrer at 7. Not so. The California

Legislature enacted CDAFA with the intent to "expand the degree of protection afforded to individuals […] from […] unauthorized access to […] computer data and computer systems, and declared that "protection of the integrity of all types and forms of […] computers, computer systems, and computer data is vital to the protection of the privacy of individuals." Cal. Penal Code § 502(a) (emphasis added). Moreover, NBC ignores Plaintiffs' repeated allegations that its installation of trackers on their computers was unauthorized. (Complaint ¶¶ 4, 46, 53, 62, 73, 63 ("At no time when users visit any of the NBC Websites does Defendant request or obtain consent from users before installing the Trackers on their browsers").)

Defendant's IP address ownership argument does not account for the additional personally identifying browser and device information the trackers record and disclose, above and beyond IP addresses. (Complaint ¶¶ 2, 42, 45, 50, 53, 61, 72.) Plaintiffs have an ownership interest in this uniquely personal data.

Defendant NBC argues they were engaged in mere "reactive data collection" here, but the Complaint alleges that Defendant NBC caused code to be installed on Plaintiff's devices that surreptitiously and without consent recorded and shared personal device information with third parties. (See *Brown v. Google LLC*, 685 F. Supp. 3d 909, 939 (N.D. Cal. 2023) (rejecting "reactive data collection" argument and sustaining CDAFA count at summary judgment based on Google's unauthorized installation of tracking code on plaintiffs' computers); Complaint ¶¶ 92-97.)

Plaintiffs have alleged, "[b]ased on Defendant's unauthorized installation and storage of third-party tracker cookies on Plaintiffs' and Class members' web browsers, as alleged above, Defendant knowingly accessed and without permission altered and used Plaintiffs' and Class members' data and computer systems in violation of Penal Code § 502(c)(1)." (Complaint ¶ 94.) In other words, Plaintiffs alleged Defendant actively installing the tracking code on internet users' browsers. (Complaint ¶¶ 40-42, 49-50, 56-57 (discussing implementation of the various trackers on Plaintiffs' and class members' web browsers).)

Finally, Plaintiffs adequately allege compensatory damages, including by explaining how Defendant NBC was unjustly enriched by using their personally identifying information obtained from each of the Trackers in violation of CDAFA to maximize revenue from selling advertising space on the Websites. (Complaint ¶¶ 4, 46, 53, 62, 99.) The statute does not define 'damage or loss' and the plain reading of 'damage or loss by reason of a violation' of CDAFA is that any loss due to the CDAFA violation is cognizable. See Cal. Penal Code § 502(e)(1)"); *Rodriguez v. Google LLC* (N.D. Cal. 2025) 772 F. Supp. 3d 1093, 1109 (plaintiffs stated a CDAFA claim under a disgorgement theory).)

The Demurrer is overruled for the cause of action for violation of Penal Code § 502.

CIPA Penal Code 638.51

First, Plaintiffs have suffered injury and have standing to bring suit. Penal Code Section 637.2 explicitly states that "[i]t is not a necessary prerequisite […] that the plaintiff has suffered, or be threatened with, actual damages." (Penal Code § 637.2(c); *Ion Equipment Corp. v. Nelson* (1980) 110 Cal. App. 3d 868, 882 ("actual damages are not a necessary prerequisite to an action pursuant to section 637.2").)

Plaintiffs have adequately alleged that the trackers are pen registers fall within CIPA's purview. "By the plain meaning of § 638.50(b), collection of the recipient phone number or IP address is not a required element. All that is required is that the Trackers record addressing information transmitted by the user's computer or smartphone in connection with the outgoing HTTP request to Fandom's website, regardless of whether that addressing information pertains to the sender or the recipient of the communication at issue.” (*Vishal Shah v. Fandom, Inc*. (N.D. Cal. 2024) 754 F. Supp. 3d 924, 928-29.)

The Demurrer is overruled for the cause of action for violation of Penal Code § 638.51.

Invasions of Privacy

Plaintiffs plead two cognizable causes of action for invasion of privacy. The first, intrusion upon seclusion at common law, requires Plaintiffs to allege facts showing that (1) NBC “intentionally intrude[d] into a place, conversation, or matter as to which the plaintiff has a reasonable expectation of privacy”; and (2) the intrusion “occur[red] in a manner highly offensive to a reasonable person.” (*Hernandez v. Hillsides Inc*. (2009) 47 Cal. 4th 272, 286.) The second, violation of the right to privacy provided by Article I, section 1 of the California Constitution, requires Plaintiffs to allege (1) “a legally protected privacy interest”; (2) a reasonable expectation of privacy; and (3) an intrusion “constitut[ing] an egregious breach of the social norms” that is “highly offensive.” (Id. at 287.)

Given the similarity of these legal theories, “courts consider the claims together when both are invoked and ask whether: (1) there exists a reasonable expectation of privacy, and (2) the intrusion was highly offensive.” (*In re Facebook, Inc. Internet Tracking Litig*. (9th Cir. 2020) 956 F.3d 589, 601 (“Facebook Tracking”). Both branches of this inquiry are mixed questions of law and fact. (Pioneer Electronics (USA), Inc. v. Superior Court (2007) 40 Cal.4th 360, 370, (citing *Hill v. Nat’l Collegiate Athletic Assn*. (1994) 7 Cal. 4th 1, 40). Only if the allegations “show no reasonable expectation of privacy or an insubstantial impact on privacy interests, the question of invasion may be adjudicated as a matter of law.” (Id. at 370 (citing *Hill*, 7 Cal.4th at 40).)

Reasonable Expectation of Privacy

Defendant’s challenge to Plaintiffs’ invasion of privacy claims comes down to its contention that they did not have a reasonable expectation of privacy in the use and collection of their IP address and other data that Defendant collected without their consent. Plaintiffs have properly alleged that they did have a reasonable expectation. Defendant’s continued focus on IP address collection only ignores the other personal device data in which Plaintiffs also had a reasonable expectation of privacy.

Defendants’ contention that there can be no expectation of privacy in IP addresses because they are commonly shared with the website they visit or used by internet service providers for routing purposes is separate from Plaintiffs’ expectations that their IP addresses (and other personal device data) would be shared with third parties. (*Shah*, 754 F. Supp. 3d at 932.)

Plaintiffs allege Defendant was collecting more than just IP addresses, including device details (make, model, operating system), browser information, and other device fingerprint information, allowing NBC and the relevant third parties (Xandr, Magnite, and Meta) to create a comprehensive record of a user’s Website activities over time. (Complaint ¶¶ 2, 45.) The court in *In re Google RTB* recognized a reasonable expectation of privacy in the collective information Defendant gathered, which can be compiled into unique profiles linking users across geographic locations and devices. (*Shah*, 754 F. Supp. 3d at 932 (citing *Facebook Tracking*, 956 F.3d at 603) (reasonable expectation of privacy where Facebook allegedly collected and created “highly personalized profiles from [plaintiffs’] sensitive browsing histories and habits.”).)

Highly Offensive Intrusion

Courts inform their assessment of an intrusion’s offensiveness with “a holistic consideration of factors such as the likelihood of serious harm to the victim, the degree and setting of the intrusion, the intruder’s motives and objectives, and whether countervailing interests or social norms render the intrusion inoffensive.” (*Hernandez*, 47 Cal. 4th at 287.) This calculus “focuses on the degree to which the intrusion is unacceptable as a matter of public policy.” (Id.)

Given this fact-intensive inquiry, the question of “[w]hether the conduct was highly offensive can rarely be resolved at the pleading stage.” (*In re Google RTB Consumer Privacy Litig*. (N.D. Cal. 2022) 606 F. Supp. 3d 935, 946 (citing *Facebook Tracking* (9th Cir. 2020) 956 F. 3d at 606*); Katz-Lacabe v. Oracle Am., Inc*. (N.D. Cal. 2023) 668 F. Supp. 3d 928, 943 (“Under California law, courts must be reluctant to reach a conclusion at the pleading stage about how offensive or serious the privacy intrusion is.”).) Here Defendants challenge on the highly offensive intrusion prong is an issue of fact which is inappropriate to discuss at the pleading stage.

The Demurrer overruled is overruled for both the intrusion upon seclusion and invasion of privacy causes of action.

UCL- Business and Professions Code § 17200 et seq.

From the Pleadings, Plaintiffs allegations are all tethered to a to some specific “constitutional, statutory, or regulatory provisions…” (*Scripps Clinic v. Super. Ct*. (2003) 108 Cal. App. 4th 917, 940.) Here, Plaintiff uses their other causes of action to act as pendant claims in which the wrongful conduct requirement can tether or attach to. Since Plaintiffs have multiple cause of actions has survived Demurrer, the Demurrer for this cause of action must be overruled.

Breach of Confidence

To prevail on a claim for breach of confidence under California law, a plaintiff must demonstrate that: “(1) the plaintiff conveyed confidential and novel information to the defendant; (2) the defendant had knowledge that the information was being disclosed in confidence; (3) there was an understanding between the defendant and the plaintiff that the confidence be maintained; and (4) there was a disclosure or use in violation of the understanding.” (*Berkla v. Corel Corp*. (9th Cir. 2002) 302 F.3d 909.)

As discussed above with respect to Plaintiffs’ invasion of privacy claims, California law recognizes the confidentiality of Plaintiffs’ IP addresses, particularly when collected alongside a host of other personal information, such as browser data, cookies and unique identifiers and collectively leveraged to create detailed profiles of users’ daily routines and behaviors. Further, because Plaintiffs’ compiled personal information is unique to them, it by definition is novel. (See also *In re Google RTB Consumer Privacy Litig*., 606 F. Supp. 3d at 947-48 (finding that the combination and totality of various different categories of users’ personal information makes such disclosure novel, finding that plaintiffs adequately alleged the confidentiality and novelty of information Google collected and disclosed for advertising purposes); *Riley v. Cal*. (2014) 573 U.S. 373, 395-97 (acknowledging confidentiality of browsing history and geolocation information).)

Thus, the Demurrer is overruled as to this cause of action.

<u>Conclusion</u>

While the parties have relied extensively on unpublished authorities from both other Superior Courts and Federal District Courts, it is more appropriate to focus the cited authorities to published state and federal cases.

For the reasons analyzed above, **<u>the Demurrer is sustained as to the claims regarding NBC Sports, Telemundo, and Meta Pixel with leave to amend and overruled as to the remaining claims. The</u>**

amended pleading shall be filed within 30 days of receipt of notice of this order.

10. 9:00 AM CASE NUMBER: L24-04469
CASE NAME: CAPITAL ONE, N.A. VS. MICHAEL CHONG
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT (CONTINUED FROM 11.13.2025)**
FILED BY:
****TENTATIVE RULING:****

This matter is continued from a prior hearing. Before the prior hearing, the Court tentatively denied defendant's motion to set aside default. (That tentative ruling, dated November 12, 2025, is adopted by reference.) At oral argument, defendant raised additional authority indicating that the court had equitable discretion to set aside the default even in the absence of compliance with other statutory limitations. (*Rappleyea v. Campbell* (1984) 8 Cal.4th 975.) By order dated November 14, 2025, the court continued the hearing in order to give plaintiff an opportunity to address the *Rappleyea* case. (That order also is incorporated by reference. In supplemental briefing, plaintiff does not dispute that under *Rappleyea*, the Court has discretion to grant the motion under equitable principles. It does, however, dispute that the equitable factors exist in this case.

Considering the equitable factors, the Court finds that defendant had agreed to a settlement of the case, and had made payments under its terms, although he had not signed and executed the agreement. The correspondence, however, clearly stated that there was no agreement, even if payments were made, unless the stipulation was signed. In addition, defendant had served an answer to the complaint but had not filed it. He contends that he was "encouraged" by the published Local Rules to file his documents electronically, when in fact there were delays in processing that resulted in him not being advised that his General Denial was rejected until well after his default had been entered. But defendant did not submit his General Denial for filing until December 12, 2024, while the default was entered on December 6th. The fact that there was delay in rejecting the General Denial is not the reason he was in default. Nor does it explain all but 51 days of his delay in moving to set aside the default.

The motion to set aside the default is denied.

11. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE OF GENNA LAUREN PORTNER
FILED BY: SYNGENTA AG
****TENTATIVE RULING:****

Granted, subject to submission of proof of service on the State Bar.

12. 9:00 AM CASE NUMBER: MSC16-01118
CASE NAME: YUE VS. TRIGMAX SOLUTIONS
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSE TO SPECIAL INTERROGATORIES**
FILED BY: YUE, DONGXIAO
****TENTATIVE RULING:****